

RESOLUTION NO. 4071

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND CITY CLERK TO EXECUTE AN AGREEMENT WITH CHARLES E. BALES."

WHEREAS, Charles E. Bales has requested that his property located at 3618 Charles Street, more specifically described as Lots 6 and 7, Robitaille Subdivision, and all of that part of Robitaille Court and Wills Road adjacent to Lots 6 and 7, and that portion of Charles Street from the west right-of-way line of Wills Road easterly 135 feet, Laramie County, Wyoming, be annexed into the City of Cheyenne because his private sewer system has failed and poses a health, safety and welfare risk; and

WHEREAS, the annexation of the property will provide for hookup to the City's sewer system and thereby protect the health, safety and welfare of the persons residing in the area; and

WHEREAS, Mr. Bales is presently unable to finance the construction of all the corresponding improvements required for annexation; and

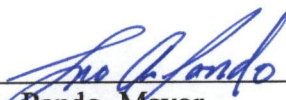
WHEREAS, Chapter 33-55 of the Code of the City of Cheyenne, as amended by Ordinance No. 3373, expressly authorizes the City of Cheyenne to enter into an agreement with an owner of property in the 201 study area to defer the required off-site improvements set forth in section 33-57; and

WHEREAS, Mr. Bales' property meets the requirements of Ordinance No. 3373; and

WHEREAS, the City of Cheyenne wishes to enter into an agreement with Mr. Bales to defer construction of the public improvements.

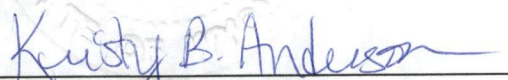
NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Mayor and the City Clerk are authorized to execute an agreement with Charles E. Bales to defer the off-site improvements of section 33-57 so that his property may receive City sewer services contingent upon final approval of the annexation of his property.

PRESENTED, READ AND ADOPTED THIS 13th DAY OF March, 2000.


Leo A. Pando, Mayor

(SEAL)

ATTEST:


Carol A. Ingle, City Clerk
Kristy Anderson, Deputy

**AGREEMENT BETWEEN
THE CITY OF CHEYENNE AND CHARLES E. BALES**

This Agreement is made and entered into by and between the City of Cheyenne, a municipality organized and existing under the laws of the State of Wyoming, whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("the City"), and Charles E. Bales, whose address is 3618 Charles Street, Cheyenne, Wyoming 82009 ("Bales").

RECITALS

A. Bales is the current owner of property ("the property") which is contiguous to, but not annexed to, the City. The property is more specifically described as follows:

Lots 6 and 7, Robitaille Subdivision, and all of that part of Robitaille Court and Wills Road adjacent to Lots 6 and 7, and that portion of Charles Street from the west right-of-way line of Wills Road easterly 135 feet, Laramie County, Wyoming.

B. Bales desires to annex the property to the City in order to obtain City sewer service because his private sewer system has failed. However, Bales is not currently able to finance the construction of street improvements including street, sidewalk, curb and gutter, which are required by the City as a condition precedent to annexation and availability of City sewer service.

C. The City recognizes that it is important to annex Bales' property because such action will resolve a serious health and safety problem, diminish county pockets and add residents to the tax rolls of the City.

D. Bales acknowledges that he is obligated to pay all costs associated with the construction of street improvements including street, sidewalk, curb and gutter, upon the City's request. He also acknowledges that the improvements will be made when his property is sold.

THEREFORE, in consideration of the mutual promises and covenants contained in this agreement, the parties agree as follows:

I. CITY'S OBLIGATIONS.

The City hereby agrees to annex Bales' property and defer construction of the above-described improvements in exchange for Bales' promise that he will make the improvements upon request of the City Engineer, upon the giving of thirty (30) days notice or when the property is sold.


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II. BALES' OBLIGATIONS.

Bales agrees to make street improvements when requested to do so by the City Engineer.

When Bales or his heirs sell the property, street, sidewalk, curb and gutter improvements must be made or sufficient funds must be escrowed for this purpose within thirty (30) days of the sale, which includes entering into a contract for deed or similar arrangement. In no event shall improvement monies escrowed ever become property of the City of Cheyenne; such monies shall either be used for the improvements described herein, or be returned to the Mr. Bales or his heirs and devisees along with any interest earned.

III. GENERAL PROVISIONS.

A. **Applicable Law.** The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

B. **Entirety of Agreement.** This Agreement, consisting of three (3) pages, represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral. None of terms of this Agreement may be waived or modified to any extent.

C. **Sovereign Immunity.** The City of Cheyenne does not waive its sovereign immunity by entering into this Agreement, and fully retains all immunities and defenses provided by law with respect to any action based on or occurring as a result of this Agreement. Bales further agrees to indemnify and hold harmless the City, its officers, agents, employees and representatives from any claim or liability arising out of the failure to comply with the terms and conditions of this Agreement.

D. **Binding Nature of Agreement.** The terms and conditions contained in this Agreement shall be a covenant running with the land and shall extend to and be binding upon Bales, his heirs, devisees, personal representatives, successors, assigns and any subsequent purchaser, lessee or holder of a contract for deed on the property.

E. **Encumbrance.** This Agreement shall be put of record by the Laramie County Clerk of Deeds and shall operate as an encumbrance on the property. The amount of the encumbrance shall be actual costs of construction as determined by the City Engineer or one hundred and fifty percent (150%) of the minimum estimated cost of the improvements on that date if actual costs are not determined by the time of sale.


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